

Racial Discrimination and the Death Penalty in the United States

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Introduction

There are still concerns about whether the death sentence is consistent with American ideals of justice and fairness because the United States is one of the few democratic countries that currently employs it. Some individuals think the death penalty is excessively severe and out of date while others think it is essential for dealing with the most heinous offenses. Regardless of one's stance the conversation cannot be finished without discussing racial prejudice. There are a lot of viewpoints on this subject but few sources offer reliable data support. The actual information on race and the death penalty is the main subject of this essay which ends with my own viewpoint based on the finding.

Statistical Evidence of Racial Disparities

The disparities across racial groupings are instantly apparent when looking at the figure. Despite making up just 13% of the US population 40% of death row inmates are African American. Additionally, Latino offenders are more common than anticipated whereas white defendants are more representative of their demographic. It does raise questions about whether all parties involved in these instances are actually receiving the same treatment. When you consider the victims' race these variations become much more apparent. Numerous studies demonstrate that the death sentence is far more likely to be applied to a white victim. In one instance from Louisiana the likelihood of a defendant being executed was 97% higher when the victim was white rather than black. There are hundreds of black defendants that have been put to death for killing white victims whereas very few white defendants have been put to death for killing black victims according to the national execution statistics. This is a major issue because it gives the impression that certain victims are valued more than others by the system. This is not limited to a single state or a few isolated instances. Approximately 96% of research

conducted nationwide on this topic discovered the racial prejudice related to the victims race, the defendants race or just both. Certain states exhibit stark contrasts. In Oklahoma for instance the likelihood of a death sentence was highest in instances involving white female victims and lowest in those involving non white male victims. It's difficult to act as though the pattern isn't genuine when it appears so frequently.

Possible Causes of These Disparities

These patterns appear often for a few reasons. Many times there isn't a deliberate attempt at discrimination. Implicit bias or action people take without even realizing it accounts for a large portion of it. Because they are all human, juries, judges and prosecutors occasionally make decisions that are impacted by prejudices without realizing it. The dispensary in legal assistance is a significant component of the issue. Due to their low income many defendants of color must rely on overburdened public lawyers who may not always have enough time or resources to provide the strongest defense. Furthermore a very small number of countries account for the majority of the death penalty cases. The issue is made worse by the lengthy history of unequal justice in those places.

Limitations and Counterarguments

Some argue that rather than race, these figures may be impacted by the seriousness of crimes or other legal considerations. Regardless of the victim or offender, they contend that some instances may have more violent circumstances, a history of criminal activity, or aggravating circumstances that inevitably increase the likelihood of the death penalty. Others point out that before a death sentence may be reversed, the judicial system demands substantial evidence of deliberate prejudice in a particular case. This test is derived from the Supreme Court's ruling in *McCleskey v. Kemp* (1987) which held that statistical proof of racial disparity is insufficient to

prove a constitutional violation. In essence, the Court decided that the burden of proof had to be quite high even if it recognized the discrepancies. Even though those are important considerations, the recurring racial patterns are still evident. Similar findings have been found in decades of studies conducted nationwide, not just in one study or one area. The overall image is too constant to ignore aaaaaa even if each instance has its own distinct features. Even if the system doesn't publicly acknowledge it, it is difficult to accept that race isn't having an impact since nearly all the evidence leads in the same direction.

My Personal Opinion

I genuinely can't argue that the death sentence is implemented equitably in the US after considering all of this. Even a small bit of bias shouldn't exist when someone's life is at stake yet in this case it's not at all. The degree to which the victim's color influences the result is what most disturbs me. The concept of "equal justice" is already compromised if the system handles cases differently based on the race of the victim. I don't mind holding people accountable for terrible crimes, but we shouldn't use the death sentence if it can't be applied without racial bias. There is no way to undo the punishment once it has been imposed. I genuinely believe that the death sentence in the United States is too closely linked to racial injustice to be just, based on what I've studied. As a result, I believe that significant reform is required or perhaps the death sentence should be abolished completely.

Conclusion

Racial disparities in the death sentence are consistently and significantly different, as seen by the data. Cases involving white victims are significantly more likely to result in a death sentence, while black offenders are overrepresented on death row. The overwhelming evidence indicates that race matters, whether on purpose or not, despite some people's claims that other

variables could be at play. There should never be such an imbalance in a punishment as severe as the death sentence. After looking over the evidence, I think the death penalty in the US falls short of the fairness standards that our legal system is meant to maintain. These racial discrepancies should compel us to reconsider our future use of the death penalty because they are too significant to ignore.

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